

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action No. 14-cv-00778-REB-MEH

UNITED STATES WELDING, INC.,

Plaintiff,

vs.

TECSYS, INC.,

Defendant.

**VERDICT FORM C
CLAIM FOR BREACH OF IMPLIED DUTY OF GOOD FAITH & FAIR DEALING**

We, the jury, present our answers to questions submitted by the court, to which answers we all have agreed:

1. Do you find that plaintiff, US Welding, has proven by a preponderance of the evidence its claim for breach of the implied duty of good faith and fair dealing, as set forth in Instruction No. 22?

YES _____

NO X _____

[If you answered "yes" to Question No. 1, above, then please answer Question Nos. 2, 3, 4, and 5. If you answered "no" to Question No. 1, above, do not answer any other Questions on this Verdict Form C; instead, date and sign this Verdict Form C.]

2. Do you find that defendant, TECSYS, has proven by a preponderance of the evidence all three (3) of the essential elements of its affirmative defense of accord and satisfaction, as set forth in Instruction No. 23?

YES _____

NO _____

3. Do you find that defendant, TECSYS, has proven by a preponderance of the evidence the one (1) essential element of its affirmative defense of prevention of performance, as set forth in Instruction No. 24?

YES _____

NO _____

4. Do you find that defendant, TECSYS, has proven by a preponderance of the evidence all four (4) of the essential elements of its affirmative defense of waiver, as set forth in Instruction No. 25?

YES _____

NO _____

5. Do you find that defendant, TECSYS, has proven by a preponderance of the evidence both of the essential elements of its affirmative defense of statute of limitations, as set forth in Instruction No. 29?

YES _____

NO _____

[If you answered "no" to Question Nos. 2, 3, 4, and 5, above, then please answer Question No. 6. If you answered "yes" to Question No. 2, 3, 4, and/or 5, above, do not answer any other Questions on this Verdict Form C; instead, date and sign this Verdict Form C.]

6. Do you find that the plaintiff, US Welding, has proven by a preponderance of the evidence that it suffered damages, as described in Instruction No. 31, caused by the breach of the implied duty of good faith and fair dealing by the defendant, TECSYS?

YES _____

NO _____

7. Please enter the amount of damages to be awarded to the plaintiff, US Welding, against the defendant, TECSYS, as described in Instruction No. 31.

\$ _____.

[Please proceed to answer Question No. 8.]

8. Do you find that the plaintiff, US Welding, has proven by a preponderance of the evidence that the actions of TECYS constituted gross negligence, wilful misconduct, or express failure to follow the terms of conduct of the parties' contract, as described in Instruction No. 32, when it breached the implied duty of good faith and fair dealing between US Welding and TECSYS?

YES _____

NO _____

[If you answered "yes" to Question No. 8, above, then please answer Question No. 9, below. If you answered "no" to Question No. 8, above, then do not answer Question No. 9 and proceed to Question No. 10, below.]

9. Please enter the amount of damages to be awarded to the plaintiff, US Welding, against the defendant, , in any of the following categories:

a. lost employee time due to TECSYS software being inaccessible -

\$ _____.

b. employee time and expenses for TECSYS software training -

\$ _____.

c. employee time and expenses for "dry run" training -

\$ _____.

d. cost of equipment purchased solely for TECSYS software implementation -

\$ _____.

e. employee time spent working with TECSYS to resolve problems with TECSYS software -

\$ _____.

f. employee time spent on issues and problems caused by TECSYS software in connection to month end close -

\$ _____.

g. cost of assignment of one full time US Welding employee to act as a point of contact with TECSYS to deal with issues and problems with TECSYS software – 2010 to 2015 -

\$ _____.

h. lost profits -

\$ _____.

10. Do you find that defendant, TECSYS, has proven by a preponderance of the evidence both of the essential elements of its affirmative defense of failure to mitigate damages, as set forth in Instruction No. 27?

YES _____

NO _____

[If you answered "yes" to Question No. 10, above, then please answer Question No. 11. If you answered "no" to Question No. 10, above, do not answer Question No. 11; instead, date and sign this Verdict Form C.]

[This space left blank intentionally.]

11. What amount of damages did the plaintiff, US Welding, suffer because it failed to take reasonable steps to avoid or minimize its damages?

\$ _____.

**YOUR FOREPERSON SHOULD COMPLETE AND DATE THIS VERDICT FORM C,
AND EACH JUROR SHOULD SIGN THIS VERDICT FORM.**

Dated this 23rd day of September, 2016.

Foreperson